

CLIC Case 0006

Country/Court: United Kingdom of Great Britain and Northern Ireland, House of Lords

Decision number/date: [2000] 1 A.C. 147, 1999-01-15

Crime / Issue: Immunities

Abstract prepared by: Philipp Gartner

Senator Pinochet (“the applicant”) – the former head of state of Chile – was arrested in the United Kingdom upon the execution of a Spanish arrest warrant, alleging charges of *inter alia* torture and murder. The applicant filed a *habeas corpus* petition which was eventually rejected. Consequently, he appealed to the House of Lords. The proceedings had to be repeated due to a potential conflict of interest of one of the Law Lords. The present abstract is concerned with this latter judgement.

The applicant argued that he benefited from immunity under international law and could therefore not be extradited to Spain. The Law Lords (with *Lord Goff of Chieveley* dissenting) rejected the applicant’s claim but differed in their argumentation which shall be demonstrated below.

Lord Browne-Wilkinson argued that the charges of torture and conspiracy to commit torture were not covered by the applicant’s immunity because Chile had ratified the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (“the Convention”). Therefore, Chile and all other State Parties to the Convention should have jurisdiction to try official for acts of torture that had occurred after the entry into force of the Convention between the involved States. Conversely, the ordinary charge of murder was covered by immunity.

By contrast, *Lord Goff of Chieveley* rejected the argument that state immunity could be waived implicitly by acceding to the Convention. Therefore, he concluded that all of the applicant’s actions were covered by state immunity which would prevent an extradition. While *Lord Saville of Newdigate* agreed in principle that a waiver of immunity has to be express, he found the provisions of the Convention to be clear enough to constitute such a waiver of immunity.

Lord Hope of Craighead took a similar approach to Lord Brown-Wilkinson. However, in his view the torture must have been systematic or widespread for immunity to perish. Contrastingly, *Lord Hutton* advocated the position that a single act of torture would suffice.

Lord Millet concluded that only a serving head of state could claim immunity in the case of torture allegation. Since the applicant was merely a former head of state, he could be extradited.

Two approaches leading to a loss of immunity were discussed by *Lord Philips of Worth Matravers*: Firstly, head of state immunity does not apply in cases of torture. Secondly, the State Parties to Convention have expressly waived immunity. Finally, he favoured the first approach, and rejected the applicant's claim.